

Shweta Pareek Nee Bhatt vs Sameer Pareek on 20 October, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

\$~3

*

IN THE HIGH COURT OF DELHI AT NEW DELHI

+

MAT.APP.(F.C.) 113/2020

SHWETA PAREEK NEE BHATT

..... Appellant

Through: Mr. Gurmehar S Sistani, Advocate with
Mr. Samit Khosla, Advocate

versus

SAMEER PAREEK

..... Respondent

Through: Mr. Varun Goswami, Advocate

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 20.10.2020 HEARD THROUGH VIDEO CONFERENCING CM 24937/2020(Exemption) Allowed, subject to all just exceptions. MAT.APP.(F.C.) 113/2020, CM 24936/2020 (Stay) and CM 24938/2020(Delay)

1. The appellant is aggrieved by an order dated 29.07.2020, passed by the learned Family Court, Rohini dismissing an application moved by her under Order XII Rule 6 CPC praying inter alia for a judgment on admission in a petition for annulment of marriage filed by her against the respondent under Section 12 of the Hindu Marriage Act.

2. The undisputed facts of the case are that the marriage of the parties was solemnised in Delhi on 23.11.2014, according to the Hindu Rites and ceremonies. Though the marriage was consummated, there is no issue from out of the wedlock and the parties are living separately since 26.05.2015. The appellant is residing in Delhi while the respondent is residing in California, USA.

3. We have enquired from learned counsel for the parties if their clients would be willing to arrive at a one-time negotiated settlement with each other to part company peacefully. Both sides are agreeable to the said suggestion.

4. Accordingly, with the consent of the parties and without prejudice to their respective rights and contentions, they are directed to appear before the Mediator, to be appointed by the Delhi High Court Mediation and Conciliation Centre on 05.11.2020, at 10.00 a.m. for participating in the online mediation. The parties along with their respective counsel shall appear virtually before the

Mediator. The learned Mediator shall have discussions with the parties and submit a report before the next date of hearing.

5. List on 05.01.2021, in the category of 'Directions' for reporting settlement, if any.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J OCTOBER 20, 2020 hsk/rkb